Comprehensive Notes on Constitutional Doctrines under Article 13

Detailed Analysis of the Doctrine of Eclipse, Doctrine of Severability, and Doctrine of Waiver

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Constitutional Law – Part III: Fundamental Rights

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Prepared for comprehensive understanding of judicial interpretation and application of Article 13

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Preliminary: Article 13 – The Constitutional Guardian of Fundamental Rights

The Complete Text of Article 13

Article 13. Laws inconsistent with or in derogation of the fundamental rights *

1. All laws in force in the territory of India immediately before the commencement of this Constitution, in so far as they are inconsistent with the provisions of this Part, shall, to the extent of such inconsistency, be void.
2. The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.
3. In this article, unless the context otherwise requires,—
   (a) "law" includes any Ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law;
   (b) "laws in force" includes laws passed or made by a Legislature or other competent authority in the territory of India before the commencement of this Constitution and not previously repealed, notwithstanding that any such law or any part thereof may not be then in operation either at all or in particular areas.
4. Nothing in this article shall apply to any amendment of this Constitution made under Article 368.

The Two Facets of Article 13

Article 13 operates on two distinct temporal planes, and this distinction is crucial to understanding the doctrines that follow: *

1. **Article 13(1): The Retrospective Shield** – Addresses all "laws in force" before 26th January 1950. These pre-constitutional laws were valid when enacted, but the Constitution retrospectively examines them. If inconsistent with a Fundamental Right, they are rendered void "to the extent of such inconsistency" from the date the Constitution commenced. The key here is that the law was born valid; its invalidity is supervening.

2. **Article 13(2): The Prospective Mandate** – Addresses laws made after 26th January 1950. It is a constitutional prohibition on legislative power: "The State shall not make any law...". If such a law is made, it is void *ab initio* (from the very beginning) because the legislature lacked the competence to enact it in violation of Part III. This is not a retrospective censor but a fundamental limitation on sovereign power.

The Definition of "Law" Under Article 13(3)

The definition of "law" is expansive and includes: *

- **Legislative enactments:** Acts passed by Parliament and State Legislatures.
- **Delegated legislation:** Ordinances, orders, bye-laws, rules, regulations, notifications.
- **Custom and usage:** Even non-statutory law having the force of law.
- **Exclusion:** By virtue of Article 13(4), a **Constitutional Amendment** under Article 368 is **not** "law" for the purposes of this article. This was added by the 24th Amendment Act, 1971, to overcome the effect of *I.C. Golaknath v. State of Punjab* and *Kesavananda Bharati v. State of Kerala*.

The Three Judicial Doctrines: An Overview

From the text of Article 13, the Supreme Court has crafted three primary doctrines to operationalize the mandate of fundamental rights protection: *

1. **Doctrine of Eclipse:** Answers the question: What happens to a pre-constitutional law that is inconsistent with a Fundamental Right? Is it dead or merely dormant?
2. **Doctrine of Severability:** Answers the question: If one part of a law is inconsistent with Fundamental Rights, does the whole law fall, or can the offending part be separated?
3. **Doctrine of Waiver:** Answers the question: Can a citizen voluntarily give up or surrender their fundamental rights, particularly when entering into agreements with the State?

Doctrine of Eclipse

Conceptual Foundation and Jurisprudential Basis

The Doctrine of Eclipse is a judicially evolved principle that seeks to balance the sanctity of Fundamental Rights with the practical reality of pre-existing legislation. Its name derives from the astronomical phenomenon: an eclipse does not destroy the celestial body; it merely obscures it. The body remains in existence and becomes fully visible again when the obscuring object moves away.

The Metaphor Explained: *

- **The Sun:** The pre-constitutional law, radiating its legal force.
- **The Moon (Obscuring Object):** The Fundamental Right that is inconsistent with the law.
- **The Shadow:** Article 13(1), which casts the shadow of unconstitutionality.
- **The Earth (Persons affected):** Citizens, for whom the law is in shadow; Non-citizens, for whom the law shines fully.

When the Moon (Fundamental Right) moves away (is amended or removed), the Sun (the law) automatically becomes fully visible (operative) again.

The Problem it Solves

If the Constitution were to declare all inconsistent pre-constitutional laws *dead*, it would create a legal vacuum. Vested rights, past transactions, completed contracts, and decrees passed under those laws would be rendered baseless, leading to chaos. The Doctrine of Eclipse provides a more nuanced approach, recognizing that: *

1. The legislature which made the pre-constitutional law was a competent legislature at the time it was made. The Constitution did not retrospectively strip that legislature of its power.
2. The law has perfectly valid operation for: (a) transactions completed before 26-1-1950, (b) enforcement of rights and liabilities that accrued before 26-1-1950, and (c) persons who are not citizens of India.
3. It is only for the benefit of citizens, and only in respect of their Fundamental Rights, that the law becomes non-operative. This non-operation is temporary if the Fundamental Right itself changes.

The Four States of a Pre-Constitutional Law

After the commencement of the Constitution, an inconsistent pre-constitutional law exists in multiple states simultaneously:

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1. **As against Citizens (Dormant/Moribund):** For citizens entitled to Fundamental Rights, the law is eclipsed. It is not dead, but it is unenforceable. It is in a "dormant or moribund condition", existing in a state of suspended animation.
2. **As against Non-Citizens (Operative):** Fundamental Rights under Articles 15, 16, 19, 29, and 30 are available only to citizens. Non-citizens cannot claim these rights. Therefore, the same law remains fully operative against non-citizens, as the shadow of unconstitutionality does not fall on them. *[Keshav Madhav Menon v. State of Bombay (1951)]*
3. **For Pre-Constitution Transactions (Operative):** The law remains fully effective for all transactions, rights, and liabilities that accrued before the Constitution commenced. Article 13(1) is not retrospective in the sense of undoing the past. *[Bhikaji Narain Dhakras v. State of M.P. (1955)]*
4. **Potential for Revival:** The eclipse is not permanent. If the obscuring Fundamental Right is amended to remove the inconsistency, the law automatically revives. No fresh legislative action is needed. The removal of the shadow makes the law fully operative again, even against citizens, from the date the impediment is removed.

Detailed Application: Article 13(1) vs. Article 13(2)

This is the most critical and highly tested distinction in Constitutional Law. It stems from the fundamental difference in the nature of the legislative power at the time the law was made.

Key Case Law: An In-Depth Analysis

The Foundational Edifice: Bhikaji Narain Dhakras v. State of Madhya Pradesh (1955) AIR SC 781

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- **Full Case Name:** Bhikaji Narain Dhakras and Others v. The State of Madhya Pradesh and Another.
- **Bench:** 5-Judge Constitution Bench.
- **Challenged Legislation:** The C.P. and Berar Motor Vehicles (Amendment) Act, 1948. This Act was passed before the Constitution under the Government of India Act, 1935, a time when the Provincial Legislature had plenary powers.
- **Provision in Question:** The Act amended the Motor Vehicles Act, 1939, empowering the Provincial Government to take over the entire motor transport business in the province, creating a state monopoly. The government was authorized to run the business to the exclusion of private operators.
- **The Constitutional Conflict:** *

Aspect	Article 13(1) (Pre-Constitution Laws)	Article 13(2) (Post-Constitution Laws)
Legislative Competence at Inception	**Plenary competence.** The legislature that enacted the law (e.g., British Parliament, Provincial Legislature under 1935 Act) was a sovereign or fully competent law-making body at the time. The law was **born valid**.	**Limited competence.** The Constitution itself is the source of legislative power. Any law violating Part III is made without jurisdiction. The law is **born void**.
The Defect	**Supervening inconsistency.** The Constitution's commencement is an external event that creates an inconsistency with an otherwise valid law. This is a vice of operational inconsistency, not of original power.	**Inherent nullity.** The law is made in breach of a constitutional prohibition. The defect goes to the root of the legislative power. It is a jurisdictional vice.
Status on 26-01-1950	Becomes **"eclipsed"** or **"dormant"** for citizens. It remains enforceable for non-citizens and for pre-constitution matters. It is **voidable**, not void *ab initio*.	Is **"still-born"** and **void *ab initio***. It is a legal nullity from its inception for all purposes and against all persons (citizens and non-citizens alike).
Effect of Amendment to Fundamental Right	**Automatic Revival.** If the inconsistent FR is amended to permit what was previously prohibited, the shadow is lifted. The law, which was alive but dormant, revives and becomes operative from the date of the amendment. *No re-enactment needed.*	**No Revival.** The dead law cannot be brought back to life by constitutional amendment. Since it was void from inception, there is nothing to revive. *The legislature must re-enact the law.*
Jurisprudential Basis	Based on the distinction between **lack of power** and **supervening impossibility**. The power to make the law existed; the power to enforce it against citizens was temporarily suspended.	Based on the doctrine of **ultra vires** and want of jurisdiction. The legislature had no power to make the law in the first place.
Theoretical Outcome	Doctrine of **revival**.	Doctrine of **re-enactment**.

Table 1: The Fundamental Dichotomy: Article 13(1) vs. Article 13(2) – A Detailed Comparison

1. **Pre-1951:** Article 19(1)(g) guaranteed the right to practice any profession or carry on any occupation, trade, or business. The 1948 Act, which excluded private opera-

tors, violated this right. The original Article 19(6) permitted reasonable restrictions in the public interest but did not explicitly permit the creation of a state monopoly.

2. **The 1951 Amendment:** The Constitution (First Amendment) Act, 1951, added a new clause to Article 19(6): "...and in particular, *nothing in the said sub-clause shall affect the operation of any existing law in so far as it relates to, or prevent the State from making any law relating to, the carrying on by the State, or by a corporation owned or controlled by the State, of any trade, business, industry or service, whether to the exclusion, complete or partial, of citizens or otherwise.*" This amendment explicitly immunized state monopolies from the right under Article 19(1)(g).

- **The Central Question:** After the 1951 amendment removed the constitutional bar, was the 1948 Act automatically revived, or did the State need to re-enact the law?
- **Judgment (Per B.K. Mukherjea, J., for the unanimous bench):** *

1. **Law is not dead:** The Court firmly rejected the argument that an inconsistent pre-constitutional law was a nullity or dead. "The true position is that the impugned law became, as it were, eclipsed, for the time being, by the fundamental right... All laws, existing or future, which are inconsistent with the provisions of Part III of our Constitution are, by the express provisions of Article 13, rendered void 'to the extent of such inconsistency'. Such laws were not dead for all purposes. They existed for the purposes of pre-Constitution rights and liabilities and they remained operative, even after the Constitution, as against non-citizens. It is only as against the citizens that they remained in a dormant or moribund condition."

2. **The Amending Act as Sunlight:** The constitutional amendment "removed the shadow and made the impugned Act free from all blemish or infirmity". The law became enforceable even against citizens.

3. **Automatic Revival:** The law revived and became operative automatically. No re-enactment by the State Legislature was required. This is the essence of the Doctrine of Eclipse.

- **Significance:** This is the *locus classicus* on the Doctrine of Eclipse. It establishes that pre-constitutional laws are void only *quoad* (in relation to) citizens, and the supervening inconsistency can be cured retrospectively by constitutional amendment.

The Pre-Constitution Criminal Law: Keshav Madhav Menon v. State of Bombay (1951) AIR SC 128

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- **Context:** This case preceded *Bhikaji Narain* and set the stage for it.
- **Facts:** The petitioner was being prosecuted under the Indian Press (Emergency Powers) Act, 1931, for publishing a pamphlet without prior authorization. The prosecution started before the Constitution came into force.
- **The Argument:** After 26-1-1950, the petitioner argued the 1931 Act was inconsistent with Article 19(1)(a) and was therefore void under Article 13(1). Since the law was void, the pending prosecution must fail.

- **Judgment (Per S.R. Das, J.):** The Court rejected this argument. Article 13(1) operates prospectively from the date the Constitution commenced. It does not invalidate past transactions or pending proceedings initiated under laws that were valid when the act was done. The law remains operative for pre-constitution acts. "The voidness of the law is from the date of the commencement of the Constitution and not from an earlier date."
- **Significance:** Established the principle that a pre-constitutional law is not void *ab initio* but only from 26-1-1950. This distinction between *void ab initio* (void from the beginning) and *void from a future date* is the very foundation on which the Doctrine of Eclipse rests.

The Post-Constitution Law is "Still-Born": Deep Chand v. State of Uttar Pradesh (1959) AIR SC 648

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- **Facts:** The U.P. State Road Transport Act, 1951, (a post-constitutional law) created a state monopoly in road transport. At the time it was passed, Article 19(6) (even after the 1951 amendment) did not fully protect it, and it was challenged under Article 19(1)(g).
- **The State's Argument:** The State argued that the Doctrine of Eclipse should apply. Even if the law was void when made, it should be considered dormant and should revive when a subsequent constitutional amendment removed the bar. They relied on the logic of *Bhikaji Narain*.
- **Judgment (Per S.K. Das, J.):** The Supreme Court, in a 4-1 majority, made a clear distinction: *
  1. **Article 13(2) affects competence:** "Article 13(2) imposes a constitutional prohibition on the State from making any law which takes away or abridges the rights conferred by Part III. Therefore, the State legislature had no power to make the impugned law in so far as it infringed the fundamental right."
  2. **The "Still-Born" Analogy:** A post-constitutional law inconsistent with Fundamental Rights is "still-born" and void *ab initio*. Being a nullity from its birth, it cannot be revived by a subsequent constitutional amendment.
  3. **Distinction from *Bhikaji Narain*:** "The law having been declared void *ab initio*, there is no question of its revival by the removal of the constitutional prohibition... The doctrine of eclipse can be applied only to a law which was valid when made but became invalid by reason of a supervening event."
  4. **Constitutional Amendment Cannot Enliven the Dead:** "An amendment of the Constitution... can have no effect on a law which was still-born. A dead law cannot be revived by any constitutional amendment... it must be re-enacted."
- **Significance:** This case finalized the law: The Doctrine of Eclipse is exclusively for pre-constitutional laws under Article 13(1). Post-constitutional laws are born dead and cannot be eclipsed because they never had any valid existence to begin with. Only re-enactment can cure the defect.

Cooley's Doctrine Applied: Saghir Ahmad v. State of Uttar Pradesh (1955) AIR SC 728

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- **Facts:** The U.P. Road Transport Act, 1951, (post-constitutional) was challenged. While this case was pending, the Constitution (First Amendment) Act, 1951, amended Article 19(6) to permit state monopolies.
- **State's Argument:** The 1951 constitutional amendment had validated the previously void Act, similar to how the law in *Bhikaji Narain* was validated.
- **Judgment:** The Court applied the American doctrine of constitutional law enunciated by Thomas Cooley: *"A statute void for unconstitutionality is dead and cannot be vitalized by a subsequent amendment of the Constitution removing the constitutional objection but must be re-enacted."*
- **The Logic:** A post-constitutional law that is void *ab initio* is a constitutional nullity. It had no legal existence. An amendment to the Constitution does not retroactively confer jurisdiction on the legislature that passed the void law. The legislature must use its fresh, post-amendment power to re-enact the statute. This is the critical difference between pre and post-constitutional laws.

Distinguishing the Applicability: State of Gujarat v. Shri Ambica Mills Ltd. (1974) AIR SC 1300

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- **Facts:** The Bombay Labour Welfare Fund Act, 1953 (a post-constitutional law), required employers to pay contributions. Unpaid contributions were recoverable as arrears of land revenue. Certain provisions were challenged as violating Article 19(1)(f) (the then-existing right to property) and Article 14.
- **One Key Question:** Could the employers (companies, which were citizens) challenge the law, while the same law remained perfectly enforceable against non-citizen employers?
- **Judgment (Per H.R. Khanna, J.):** The Court clarified the status of void post-constitutional laws: *
  1. A post-constitutional law void for violating Article 14 or 19 is void only *quoad* citizens. It remains valid and enforceable against non-citizens. This is because Article 13(2) is a declaration of the law's voidness "to the extent of the contravention". The contravention is only in relation to those entitled to the right.
  2. This is a crucial nuance: even a post-constitutional law is not void *in rem* (against the whole world) but void *in personam* (against the persons whose rights are infringed). A company (a citizen) cannot say the law is a nullity for all purposes; it is only a nullity *quoad* companies.
- **Significance:** *Ambica Mills* modifies the "still-born" theory by making it person-specific. This blurs the line slightly but does not affect the eclipse rule: the post-

constitutional law is void for citizens from its inception and cannot be revived by constitutional amendment; it is a nullity for them, not for non-citizens.

The Exception: Revival via the Ninth Schedule (Article 31B)

The rigid rule that post-constitutional void laws must be re-enacted has one major statutory exception: placement in the Ninth Schedule.

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- **Article 31B:** "Without prejudice to the generality of the provisions contained in Article 31A, none of the Acts and Regulations specified in the Ninth Schedule... shall be deemed to be void, or ever to have become void, on the ground that such Act, Regulation or provision is inconsistent with, or takes away or abridges any of the rights conferred by, any provisions of this Part, and notwithstanding any judgment, decree or order of any court or tribunal to the contrary, each of the said Acts and Regulations shall, subject to the power of any competent Legislature to repeal or amend it, continue in force."
- **Retrospective Validation:** Article 31B expressly deems the law **never to have been void**. This is an absolute constitutional fiction. It retroactively cures the defect from the date the Act was placed on the statute book.
- **No Re-enactment Required:** If an Act has been struck down by a court as violative of Articles 14, 19, or 31 (before its repeal), and is subsequently placed in the Ninth Schedule, the Act revives in full force and vigour, retrospectively. The legislature does not need to re-enact it because the Constitution itself validates it.
- **Constitutional Limits on Ninth Schedule:** *
  1. **Waman Rao v. Union of India (1981):** The Supreme Court held that laws added to the Ninth Schedule *before* the *Kesavananda Bharati* judgment (24th April 1973) are beyond judicial review. However, laws added *after* that date can be challenged if they violate the "basic structure" of the Constitution.
  2. **I.R. Coelho v. State of Tamil Nadu (2007) – The "Ninth Schedule" Judgment:** A 9-Judge Bench unanimously held that any law placed in the Ninth Schedule after 24th April 1973 is open to judicial review on the touchstone of Part III. If such a law is found to violate the basic structure (of which fundamental rights are a core component), the immunity under Article 31B will not protect it.
- **Conclusion on Eclipse and Ninth Schedule:** The Ninth Schedule is a specific constitutional mechanism for revival that bypasses the eclipse doctrine. It applies to both pre and post-constitutional laws and provides absolute retrospective validation, albeit now subject to basic structure review for post-1973 laws.

The Controversy: Does Eclipse Apply to Post-Constitutional Laws?

While the majority rule in *Deep Chand* is settled law, a minority view and some exceptional cases suggest extending the eclipse doctrine.

The Exception Case: Dularey Lodh v. III Additional District Judge, Kanpur (1984) AIR SC 1260

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- **Facts:** A landlord obtained a decree for eviction against a tenant. Before the decree could be executed, the U.P. Urban Buildings (Regulation of Letting, Rent and Eviction) Act, 1972 (a post-constitutional law), came into force. Section 2(2) of the Act exempted buildings belonging to certain categories of landlords, but this exemption was challenged as violative of Article 14 (arbitrary classification). The High Court declared the exemption provision void.
- **The Consequence:** Since the exemption was void, the bar on executing eviction decrees applied to all landlords, and the decree-holder could not execute his decree. The decree became unenforceable.
- **Subsequent Development:** The Legislature amended the 1972 Act, removing the arbitrary classification and making the exemption provision compliant with Article 14. The bar on execution that prevented the decree-holder from executing his decree was removed.
- **The Question:** Did the decree, which was blocked by the unconstitutional provision, automatically become executable once the unconstitutional bar was removed?
- **Judgment (Per D.A. Desai, J.):** The Supreme Court held that the decree revived and became executable. The Court stated: "By virtue of the 1972 Act the decree could not have been set aside... the decree would be lying dormant and could not be executed. Once the bar placed by the 1972 Act is removed, by virtue of the doctrine of eclipse the decree will revive and become at once operative and executable."
- **Analysis:** While this case applies the language of "eclipse" to a post-constitutional law, it is arguably a case about the effect of an unconstitutional statutory bar on a pre-existing right (the decree), not about the validity of the statute itself. The statute was amended, not a Fundamental Right. However, the language used by the court does extend the doctrine of eclipse to post-constitutional legislative bars.

Arguments for Extending Eclipse to Post-Constitutional Laws

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1. **Legislative Competence Not Lacking:** When a legislature makes a law, it is the same body (e.g., State Legislature under Articles 245-246) that has the power to make laws on the subject. The incompetence is only relative to the Fundamental Right, not absolute. It is not like a State Legislature making a law on a Union subject. Therefore, the law should not be treated as a complete nullity or *non-est*.

2. **Procedural Safeguards in the Constitution:** Article 200 and 201 empower the Governor to reserve a Bill for the President's consideration. Article 213(3) requires the Governor's instructions to be followed for an Ordinance. These provisions show that the Constitution contemplates laws that may have doubtful *vires* and provides mechanisms for resolving that doubt. This implies the law has some existence.
3. **Parliamentary Power to Repeal:** Parliament can, under Article 252 and other provisions, repeal or alter a State law. This power presupposes the law has a valid existence, even if flawed.
4. **Practical Sense:** Requiring re-enactment when the only defect is inconsistency with a now-amended Fundamental Right is a wasteful and formalistic exercise. The doctrine of eclipse for post-constitutional laws would be a more practical and efficient solution.

The Current Position: Despite the critique, the settled law remains as per *Deep Chand*. The Doctrine of Eclipse is, by a strong majority view and a long line of precedent, applicable **only** to pre-constitutional laws under Article 13(1). Post-constitutional laws are void *ab initio* and require re-enactment. The *Dularey Lodh* case remains an anomaly and has not been followed as a general principle.

Doctrine of Severability

Conceptual Foundation and Source

The Doctrine of Severability is not a creation of judicial craft alone; it is embedded in the very text of Article 13. Both Article 13(1) and 13(2) state that a law inconsistent with Fundamental Rights is void **"to the extent of the inconsistency or contravention"**. This crucial phrase implies that the Constitution does not mandate the destruction of an entire statute if only a part of it is offensive.

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Core Logic: The legislature, had it known that a particular provision would be unconstitutional, might still have wanted the rest of the Act to stand. The doctrine seeks to give maximum possible effect to legislative will while ensuring conformity with the Constitution. It is a doctrine of judicial restraint: courts should not strike down more than is necessary to cure the constitutional defect.

The doctrine is borrowed from American Constitutional Law, where it is known as the "Doctrine of Separability". The judicial function is to excise the malignant portion, not to kill the entire organism. However, if the malignant portion is so integrated with the healthy tissue that excision would kill the organism, the entire statute must fall.

The Test of Severability: The Twin Requirements

The Supreme Court has laid down a clear two-part test:

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1. **Separability in Fact:** The valid and invalid parts must be physically and notionally separable. They should not be so inextricably interwoven that separating them destroys the meaning or coherence of either part. The invalid part must be able to be mechanically severed.
2. **Separability in Intent:** The court must determine whether the legislature would have enacted the valid part without the invalid part. This is a hypothetical inquiry into legislative intent. Would the truncated Act serve the legislative purpose? Would the legislature have been satisfied with what remains?

If the answer to either test is negative, the entire Act falls.

The Comprehensive Rules of Severability (As laid down in *RMDC*)

In *R.M.D. Chamarbaugwalla v. Union of India (1957)*, the Supreme Court synthesized the American and Indian precedents into eight governing rules. These rules are the

definitive authority on severability in India.

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Rule 1: The Intention of the Legislature is Determinative. This is the master rule that governs all others. The court must ascertain whether the legislature would have enacted the law without the unconstitutional portion. The test is: *If the legislature had been aware of the constitutional infirmity, would it still have passed the valid portion?*

Rule 2: Where Valid and Invalid Provisions are Inextricably Mixed. If the provisions are so interwoven and interdependent that they form a single, indivisible scheme, the invalidity of a part must result in the failure of the whole. They cannot be separated without destroying the legislative plan. *Example:* If a licensing scheme has unconstitutional criteria, but those criteria are central to the entire licensing process, the whole scheme may fall.

Rule 3: Where Valid and Invalid Provisions are Distinct and Severable. If the valid portion is independent, self-contained, and capable of being enforced as a complete code, it will be upheld even after the invalid portion is struck down. The invalid part is simply deleted, and the rest operates normally.

Rule 4: Single Scheme as a Whole. Even if the sections are distinct on paper, if they are all part of a single integrated scheme intended to operate as a totality, the removal of one part may cause the entire scheme to collapse. The court will look at the substance of the legislative plan, not the form of the sections.

Rule 5: Materially Different Legislation. If, after severing the invalid parts, the remaining Act is "so thin and truncated" that it is substantially different from what the legislature intended, the entire Act must be struck down. The court will not uphold a legislation the legislature would not recognize as its own.

Rule 6: Judicial Legislation Prohibited. If severance requires the court to rewrite the Act, to add words, to alter its scope, or to make modifications to make it workable, the court will strike down the whole Act. The court can only *delete*; it cannot *amend* or *substitute*. That is the function of the legislature.

Rule 7: Substance Over Form. Severability does not depend on whether the void and valid provisions are in the same section, different sections, or even different parts of the Act. The arrangement in the statute book is irrelevant. The court looks at the functional and conceptual interconnection.

Rule 8: External Aids for Intent. To determine the legislature's hypothetical intent, the court may look at the history of the legislation, the Statement of Objects and Reasons, the title, the preamble, the scheme of the Act, and the surrounding circumstances at the time of enactment.

Key Case Law: A Detailed Examination

The Locus Classicus: R.M.D. Chamarbaugwalla v. Union of India (1957) AIR SC 628

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- **Bench:** 5-Judge Constitution Bench.
- **Challenged Legislation:** The Prize Competitions Act, 1955.
- **The Definitional Problem:** Section 2(d) of the Act defined "prize competition" very broadly. It included: *
  1. Competitions where success depends to a substantial degree on skill (e.g., crossword puzzles, essay contests).
  2. Competitions where success does not depend to a substantial degree on skill, i.e., gambling (e.g., lotteries, lucky draws).

  The Act, in its entirety, imposed heavy restrictions and penal consequences on the promotion and conduct of all "prize competitions".
- **The Constitutional Challenge:** *
  1. **Skill Competitions:** The petitioners, who ran crossword and other skill-based competitions, argued that their business was protected under Article 19(1)(g). They contended that a competition of skill is a legitimate business activity. Parliament could not prohibit it, only regulate it reasonably under Article 19(6).
  2. **Gambling Competitions:** Parliament conceded, and the Court accepted, that gambling is *res extra commercium* (outside the sphere of legitimate commerce). The right under Article 19(1)(g) does not extend to gambling. Parliament has plenary power to prohibit or severely restrict gambling competitions.
- **The Finding:** The Court found that so far as the Act applied to **skill competitions**, it was an unreasonable restriction and unconstitutional under Article 19(1)(g). However, it was perfectly constitutional as applied to **gambling competitions**.
- **Application of the Severability Test:** *
  1. **Clear-Cut Distinction:** The Court found a "clear-cut and well-recognized" distinction between gambling and skill-based competitions. This distinction had existed in legislative practice for decades.
  2. **Legislative Intent:** The Court held that Parliament's primary object was to control the gambling evil. It would have enacted the law for gambling competitions alone, even if it had known the skill-based part was unconstitutional.
  3. **Severance Method:** The Act was held to be severable **in its application**. The Act itself was not rewritten. Instead, the Court read down the definition of "prize competition" and held that the Act, in its entirety, would apply only to gambling competitions and not to skill competitions.
- **Held:** The Act was upheld, but its application was confined to competitions of a gambling nature. This is a classic example of severability by restricting application.

Where Severability Fails: Romesh Thappar v. State of Madras (1950) AIR SC 124

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- **Bench:** 6-Judge Constitution Bench.
- **Challenged Law:** Section 9(1-A) of the Madras Maintenance of Public Order Act, 1949.
- **Impugned Provision:** The provision empowered the State Government to prohibit the circulation of any newspaper "for the purpose of securing the public safety or the maintenance of public order".
- **Constitutional Conflict:** *
  1. Article 19(1)(a) guarantees freedom of speech and expression.
  2. Article 19(2), at the relevant time, permitted restrictions on this freedom only on grounds of: (i) security of the State, (ii) friendly relations with foreign states, (iii) public order, (iv) decency or morality, (v) contempt of court, (vi) defamation, (vii) incitement to an offence.
  3. "Public safety" was not one of the grounds mentioned in Article 19(2).
- **The Problem for Severability:** The provision used the disjunctive "or" – "public safety **or** public order". The State could legitimately act to maintain public order, but it could not legitimately act for the broader purpose of public safety.
- **Can "Public Safety" be Severed?** The petitioner argued that the provision should be struck down entirely. The State argued that "or public safety" should be severed, and the provision should be read as only "for the purpose of maintaining public order".
- **The Court's Rejection of Severability:** *
  1. **Not a Precise Distinction:** Unlike the "gambling vs. skill" distinction in *RMDC*, the Court found that the difference between "public safety" and "public order" was "not precise". The boundaries were amorphous and overlapping. An act endangering public safety frequently also endangers public order.
  2. **Danger of Misuse:** If the provision remained with just "public order", the executive could still use it to suppress speech for reasons of public safety, disguising it as public order. The vagueness of the language meant that severing the words would not prevent the unconstitutional application.
  3. **Severance Would Not Change Reality:** The Court held the provision was "inseverable" in its practical operation. The language was a single, indivisible grant of power, and merely deleting the words "public safety or" would not ensure that the power was used only for constitutional purposes.
- **Held:** Section 9(1-A) was struck down in its entirety as violative of Article 19(1)(a). This case illustrates the second test: the impossibility of clean severance and the ongoing danger of unconstitutional application.

Severability in Practice: State of Bombay v. F.N. Balsara (1951) AIR SC 318

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- **Challenged Law:** The Bombay Prohibition Act, 1949, a comprehensive law enforcing alcohol prohibition.
- **Multiple Challenges:** The Act contained numerous provisions, some of which were challenged on various grounds (e.g., discrimination, excessive delegation).
- **The Court's Approach:** The Supreme Court undertook a meticulous, provision-by-provision analysis.
- **Outcome:** The Court found eight specific sections to be unconstitutional. However, it held these sections were clearly severable from the main fabric of the Prohibition Act. They were not the heart of the Act. The Court severed those eight sections and upheld the validity of the rest of the Act.
- **Significance:** Demonstrates a perfect application of Rule 3: the invalid parts were distinct and their removal left a complete and workable code for prohibition.

Saving What Can Be Saved: A.K. Gopalan v. State of Madras (1950) AIR SC 27

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- **Challenged Law:** The Preventive Detention Act, 1950.
- **Impugned Provision:** Section 14 of the Act prohibited a detained person from disclosing the grounds of their detention to a court.
- **The Finding:** The Supreme Court held that Section 14 violated Article 19(1)(a) (freedom of speech) and was not saved by any reasonable restriction. It also violated Article 21 by preventing effective legal representation.
- **Application of Severability:** The Court held that only Section 14 was unconstitutional. The rest of the Preventive Detention Act was a complete and workable code even without Section 14. It was not an integral part of the scheme. The Court severed Section 14 and left the rest of the Act intact.
- **The Principle:** The courts should make every effort to save as much of an Act as possible and declare void only what must be declared void.

Severability of a Penal Provision: Mithu Singh v. State of Punjab (1983) AIR SC 473

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- **Bench:** 5-Judge Constitution Bench.
- **Challenged Provision:** Section 303 of the Indian Penal Code, 1860.

- **Text of Section 303:** "Whoever, being under sentence of imprisonment for life, commits murder, shall be punished with death."
- **The Challenge:** The provision mandated the **death penalty** with no judicial discretion. It was challenged under Article 14 (Right to Equality) and Article 21 (Right to Life and Personal Liberty).
- **The Unconstitutionality Finding:** *
  1. **Arbitrary Classification:** The classification between murderers serving a life sentence and other murderers was found to be irrational. There was no intelligible differentia for imposing a mandatory death penalty on the former group.
  2. **Violation of Article 21 Procedure:** The mandatory nature of the sentence excluded any judicial consideration of mitigating circumstances, making the "procedure" under the law arbitrary, unfair, and violative of Article 21.
- **Application of the Doctrine of Severability:** *
  1. The question was whether Section 303 alone could be severed, or whether its invalidity affected the entire sentencing scheme of the IPC.
  2. The Court held Section 303 was a standalone provision. It was not woven into the fabric of the IPC's sentencing framework for murder (Section 302, which gives judicial discretion to impose life imprisonment or death).
  3. The removal of Section 303 did not require the court to rewrite any other provision. The normal law of murder under Section 302 would simply apply to life convicts who commit murder.
- **Held:** Section 303 was "unconstitutional and void" and was struck down. The rest of the Indian Penal Code, including the death penalty provision in Section 302, was left untouched. The Court applied the doctrine perfectly: the offending provision was excised, and the rest of the Code continued to operate normally.

Reconciling the Tests: When is Severability Allowed?

The Supreme Court, in **Superintendent, Central Prison, Fatehgarh v. Ram Manohar Lohia (1960)**, provided the final reconciliation of *Romesh Thappar* and *RMDC*.

The Distinction as Clarified by Justice Subba Rao (as he then was): *

1. In *RMDC*, the two types of activities (gambling and skill competitions) were **conceptually distinct and historically recognized** as separate categories. There was no danger of one being confused for the other. The law could be applied to one category with no risk of being applied to the other.
2. In *Romesh Thappar*, the two purposes (public safety and public order) were **not conceptually distinct**. They were overlapping and imprecise. There was a **real and substantial danger** that the power granted for the constitutional purpose (public order) would be used for the unconstitutional purpose (public safety) because an executive officer, in practice, would not distinguish between the two.

The Decisive Factor: The Danger of Misuse. If the language of the law is such that it can be fairly and practically applied only to constitutional objects, it is severable. If the language is so broad and vague that it can easily be applied to unconstitutional objects, and there is no guarantee against such misuse, the whole provision is inseverable and must fall. This is essentially a test of **overbreadth**.

Doctrine of Waiver

Conceptual Foundation

Waiver is a general principle of law, common to contracts and procedure. It signifies the **intentional and voluntary relinquishment or abandonment of a known right**. A person, being the best judge of their own interest, can choose not to insist on a legal right or privilege. The essential elements are: *

1. **Knowledge:** The person must have full knowledge of the right they are giving up.
2. **Intention:** The abandonment must be intentional and deliberate.
3. **Voluntariness:** The waiver must be a free act, not done under coercion, duress, or compulsion.

The Constitutional Question: Can Fundamental Rights Be Waived?

The central question is whether the doctrine of waiver applies to the realm of Constitutional Law, specifically to the Fundamental Rights enshrined in Part III. The answer is a resounding **NO**, established by a landmark 5-Judge Bench decision.

The Constitutional Foundation: Basheshar Nath v. Commissioner of Income Tax (1959) AIR SC 149

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- **Full Case Name:** Basheshar Nath v. The Commissioner of Income-Tax, Delhi & Rajasthan.
- **Bench:** 5-Judge Constitution Bench (CJ S.R. Das, Justices N.H. Bhagwati, S.K. Das, J.L. Kapur, and K. Subba Rao). This bench produced a 3:2 split (with three concurring opinions for the majority and one dissenting).
- **Factual Matrix:** *
  1. The petitioner, Basheshar Nath, was a wealthy businessman. His case was referred to the Income Tax Investigation Commission under Section 5(1) of the Taxation of Income (Investigation Commission) Act, 1947. The Commission was authorized to investigate cases of substantial tax evasion.
  2. Facing a protracted investigation and the prospect of heavy penalties and prosecution, the petitioner entered into a **settlement** with the Commissioner of Income Tax under Section 8A of the 1947 Act. The settlement required him to pay a large sum, roughly Rs. 4.5 lakhs, in instalments. He paid some instalments.
  3. Subsequently, in **Suraj Mall Mohta and Co. v. A.V. Visvanatha Sastri (1955)**, the Supreme Court declared Section 5(1) of the 1947 Act unconstitutional. The Court held that the procedure under Section 5(1) for investigating certain

classes of assessees was discriminatory and violated Article 14 of the Constitution. The classification was arbitrary and had no reasonable nexus with the object of catching tax evaders.

4. Basheshar Nath stopped paying the instalments. The Income Tax Department initiated proceedings to recover the remaining amount as arrears of land revenue. The petitioner challenged the recovery, arguing that since the very law under which the settlement was made (Section 5(1)) was unconstitutional, the settlement was a nullity, and he was not liable to pay.

5. **The State's Core Argument:** The petitioner had voluntarily entered into the settlement. He had benefited from it by avoiding prosecution and harsher penalties. Having taken the benefit, he could not now be heard to say the law was bad. He had **waived** his fundamental right to equality under Article 14 by choosing to settle.

- **The Majority Decision (CJ S.R. Das, Justice Kapur, Justice Subba Rao): Fundamental Rights Cannot Be Waived.** *

  1. **Per Chief Justice S.R. Das:** Article 14 enshrines a principle of public policy that is the very foundation of the Constitution. It is a guarantee against arbitrary state action. It is not a private right conferred for the benefit of an individual, which can be bartered away. The doctrine of waiver has no place in the realm of fundamental rights.

  2. **Per Justice Subba Rao (The Most Elaborate Opinion):**

     (a) **Constitutional Supremacy:** Fundamental Rights are not gifts from the State; they are limitations on the State's power. The State cannot acquire power over a citizen by getting them to waive a right. The constitutional limitation is absolute and non-negotiable.

     (b) **India's Social Context:** Justice Subba Rao emphasized the socio-economic reality of India. "The large majority of our people are economically poor, educationally backward, and politically not yet conscious of their rights. They are not in a position to resist pressure or temptation... They may, without understanding the consequences, agree to waive their rights. It would be the duty of the Court to protect them against themselves." This is the most powerful rationale: the doctrine of waiver assumes equal bargaining power, which does not exist between the State and the common Indian citizen.

     (c) **Public Interest:** Fundamental rights are not merely individual rights but also serve a larger public interest in maintaining a democratic and free society.

  3. **Per Justice Kapur:** Concurred, holding that Article 14's guarantee is absolute and cannot be traded away by a private arrangement.

- **The Opinion of Justice N.H. Bhagwati:** He went further than the majority, stating that **no** fundamental right in Part III can be waived by a citizen, making no distinction between rights for individual benefit and those for public good.

- **The Dissenting Opinion of Justice S.K. Das:** *

  1. He made a crucial distinction between **two categories of fundamental rights**:

(a) **Rights for the benefit of the general public:** These include rights under Articles 15, 17, 18, 20, 21, 23, and 24. These are grounded in public policy and cannot be waived.

(b) **Rights for the benefit of the individual:** These include rights under Articles 16, 19, and in the context of this case, the equality right under Article 14 when it relates to a personal financial liability. These are conferred for individual advantage and can be voluntarily waived by the beneficiary.

2. Since the settlement related to the petitioner's personal financial liability, it fell into the second category, and he had validly waived his right. By breaking the settlement, he was acting inequitably.

- **The Outcome:** The majority view (CJ Das, Kapur, Subba Rao JJ.) prevailed. The principle is now firmly established: **A fundamental right cannot be waived.** It is not a matter of individual choice but a constitutional mandate.

The Deep Rationale: Why No Waiver?

The judgments in *Basheshar Nath* provide a multi-layered justification:

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1. **Constitutional Structure and Public Policy:** Part III of the Constitution is not a contract between the State and the individual. It is a charter of public policy, a set of fundamental principles on which the Republic is built. The State cannot be allowed to contract out of its constitutional obligations, and a citizen cannot be allowed to give a license to the State to violate the Constitution. The rights are in the nature of a *jus publicum* (public right).
2. **Protection Against State Overreach:** Allowing waiver would enable the State to impose conditions on citizens to give up their rights in exchange for state benefits (licenses, permissions, contracts, settlements). This would make fundamental rights negotiable commodities, eroding the entire constitutional edifice. The powerful state could easily compel waivers from vulnerable individuals.
3. **Unequal Bargaining Power and the Indian Reality:** Justice Subba Rao's reasoning is exceptionally powerful. The doctrine of waiver is based on the laissez-faire assumption of equal, knowledgeable parties. This is a fiction in a country marked by vast inequality, illiteracy, and poverty. The court has a paternalistic duty to protect citizens from waiving rights they do not fully comprehend.
4. **Constitutional Morality:** The Constitution sets a higher moral standard for the State. Even if an individual is willing to compromise their rights, the State is not permitted to exploit that willingness. This is "constitutional morality" – the State must act in a manner consistent with constitutional values, even if the individual does not demand it.

The Modern Critique and Evolving Viewpoint

The blanket prohibition on waiving fundamental rights, particularly as articulated by Justice Bhagwati, has been subject to academic and judicial critique.

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- **Arvind Datar's Critique:** Senior Advocate Arvind Datar has argued the rule is "erroneous" and needs reconsideration. The arguments are: *
  1. **The Right to Forbearance:** Every right necessarily includes the right not to exercise it. The right to freedom of speech includes the right to remain silent. The right to practice a profession includes the right not to practice. If I have a fundamental right to do X, I must logically have the right to choose not to do X. Waiver is simply the exercise of this choice.
  2. **Informed Decisions:** Modern jurisprudence, especially in the context of the right to privacy (post-*Puttaswamy*), recognizes the concept of **"decisional autonomy"**. An individual has the right to make free and informed decisions about their own life, including the decision to forego asserting a right in a particular context.
  3. **Examples of Tacit Waiver:**
     (a) A person who volunteers for a reality TV show and signs a contract giving up certain privacy rights is effectively waiving the right to privacy in that context.
     (b) When an individual posts their photo and personal details on a public social media platform, they have made a conscious decision to place that information in the public domain. They cannot later claim a breach of their fundamental right to privacy against the platform or its users for that specific information.
- **The *Excel Wear* Principle:** In *Excel Wear v. Union of India (1978)*, the Supreme Court held that the right to carry on a business under Article 19(1)(g) also includes the right **not** to carry on a business. This implies a choice is inherent in the right itself. The decision to close a business is a fundamental right.
- **Waiver vs. Estoppel in the Context of Article 14:** The Court in *Basheshar Nath* also dealt with the argument that the petitioner was estopped from challenging the law. The Court held that **there can be no estoppel against the Constitution**. Estoppel is a rule of evidence; it cannot validate an unconstitutional law or compel obedience to a void statute. This is separate from waiver but related. The principle is the same: no individual act can confer validity on a void law.

Distinction Between Waiver and Estoppel

It is critical to distinguish these related but distinct concepts.

Aspect	Doctrine of Waiver	Doctrine of Estoppel
Source of Law	Rooted in contract law. It is an agreement, express or implied, to release a right.	Rooted in the law of evidence (Section 115, Indian Evidence Act). It is a rule preventing a party from proving a fact if they have previously represented otherwise.
Nature	**Substantive and contractual.** It extinguishes a right.	**Procedural and evidentiary.** It does not extinguish a right but bars the remedy or the ability to assert the right in a particular proceeding.
Basis	**Intention of the party.** There must be an intention to abandon a known right. Intention is the core.	**Conduct and reliance.** There must be a representation by one party, reliance on that representation by another, and detriment as a result. Intention to deceive is not necessary; it is the effect of the representation that matters.
Focus	Focuses on the **right-holder** and their state of mind.	Focuses on the **representee** and their change of position based on the right-holder's conduct.
Underlying Maxim	"Quilibet potest renuntiare juri pro se inducto" (Anyone can renounce a right introduced for their own benefit). This maxim is **inapplicable** to Fundamental Rights.	"Allegans contraria non est audiendus" (A person alleging contrary facts is not to be heard).
Application to Fundamental Rights	**Cannot be applied.** A fundamental right cannot be waived.	**Cannot be applied.** There is no estoppel against the Constitution. No representation by an individual can validate a void law or prevent the court from declaring it void.

Table 2: Key Distinctions Between the Doctrines of Waiver and Estoppel

Comprehensive Summary of the Three Doctrines

Doctrine	Constitutional Source	Key Case(s)	Core Principle
Eclipse	Article 13(1). Applies to pre-constitutional laws inconsistent with FRs.	*Bhikaji Narain v. MP* (1955) – Foundational. *Keshav Madhav Menon* (1951) – Pre-constitution rights saved. *Deep Chand* (1959) – Not for post-constitutional laws.	A pre-constitutional law inconsistent with an FR is not dead but becomes **dormant** (eclipsed) for citizens. It remains operative for non-citizens and past transactions. If the FR is amended, the law **revives automatically**.
Severability	The phrase "to the extent of the inconsistency" in Articles 13(1) & 13(2). Applies to both pre and post-constitutional laws.	*RMDC v. Union of India* (1957) – Leading case; 8 rules laid down. *Romesh Thappar* (1950) – Inseverability when distinction is imprecise. *Mithu Singh* (1983) – S. 303 IPC severed.	If the unconstitutional part of a law is **distinct and separable** from the valid part, only the offending part is struck down. If inseparable, the whole Act falls. The test is **legislative intent**: would the legislature have enacted the valid part alone?
Waiver	Based on the nature of Fundamental Rights as public law and policy. No specific Article; it is a judge-made limitation on the doctrine of waiver in constitutional law.	*Basheshar Nath v. CIT* (1959) – Leading case; 4:1 majority. *Olga Tellis v. BMC* – Related to non-waiver of livelihood. *Excel Wear* (1978) – Right includes the choice not to exercise it.	**A citizen cannot voluntarily relinquish or waive their Fundamental Rights.** These rights are not private privileges but constitutional mandates based on public policy. They are limitations on state power and cannot be bartered away.

Table 3: The Three Doctrines Under Article 13: A Comprehensive Comparison

Appendix: Complete Case List with Citations

Doctrine of Eclipse

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1. **Bhikaji Narain Dhakras v. State of Madhya Pradesh, AIR 1955 SC 781.** *Foundational case. Doctrine enunciated. Pre-constitutional law is dormant, revives on removal of FR bar.*

2. **Keshav Madhav Menon v. State of Bombay, AIR 1951 SC 128.** *Pre-constitutional law void for citizens from 26-1-1950; valid for non-citizens and past acts.*

3. **Deep Chand v. State of Uttar Pradesh, AIR 1959 SC 648.** *Doctrine of eclipse held not applicable to post-constitutional laws. Such laws are void ab initio.*

4. **Saghir Ahmad v. State of Uttar Pradesh, AIR 1955 SC 728.** *Applied Cooley's doctrine; a void post-constitutional law cannot be revived by constitutional amendment; must be re-enacted.*

5. **State of Gujarat v. Shri Ambica Mills Ltd., AIR 1974 SC 1300.** *Post-constitutional void law is void only against citizens whose rights are infringed; valid against non-citizens.*

6. **Dularey Lodh v. III Additional District Judge, Kanpur, AIR 1984 SC 1260.** *Exceptional extension of eclipse logic to a post-constitutional statutory bar blocking a decree.*

7. **Waman Rao v. Union of India, AIR 1981 SC 271.** *Post-1973 Ninth Schedule laws subject to judicial review on the basic structure doctrine.*

8. **I.R. Coelho (Dead) by LRs. v. State of Tamil Nadu, AIR 2007 SC 861.** *9-Judge Bench: All Ninth Schedule laws after 24-4-1973 are open to challenge on Part III grounds.*

Doctrine of Severability

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1. **R.M.D. Chamarbaugwalla v. Union of India, AIR 1957 SC 628.** *Locus classicus. Laid down the eight rules of severability. Prize Competitions Act held severable.*

2. **Romesh Thappar v. State of Madras, AIR 1950 SC 124.** *Provision inseverable where permissible and impermissible applications are not clearly distinguishable.*

3. **A.K. Gopalan v. State of Madras, AIR 1950 SC 27.** *Only offending S. 14 of PDA severed; rest of the Act saved. Established the "save as much as possible" principle.*

4. **State of Bombay v. F.N. Balsara, AIR 1951 SC 318.** *Eight distinct sections of Bombay Prohibition Act severed; the core Act remained intact.*

5. **Mithu Singh v. State of Punjab, AIR 1983 SC 473.** *Mandatory death penalty under S. 303 IPC unconstitutional; severed cleanly from the rest of the IPC.*

6. **Superintendent, Central Prison, Fatehgarh v. Dr. Ram Manohar Lohia, AIR 1960 SC 633.** *Reconciled RMDC and Romesh Thappar: the test is the danger of misuse due to imprecise language.*

Doctrine of Waiver

1. **Basheshar Nath v. Commissioner of Income Tax, Delhi & Rajasthan, AIR 1959 SC 149.** *Leading case. 4:1 majority held a Fundamental Right cannot be waived. Article 14 is a matter of public policy.*
2. **Suraj Mall Mohta and Co. v. A.V. Visvanatha Sastri, AIR 1954 SC 545.** *The predecessor case; declared Section 5(1) of the 1947 Act unconstitutional, setting the stage for Basheshar Nath.*
3. **Olga Tellis v. Bombay Municipal Corporation, AIR 1986 SC 180.** *Related to the non-waiver of the right to livelihood under Article 21; estoppel cannot stand against Fundamental Rights.*
4. **Excel Wear v. Union of India, AIR 1979 SC 25.** *Recognized that the right to carry on a business includes the right not to carry it on, implying a choice inherent in the right.*